WILFRED MBOMA
versus
MVELASE MINING AND LOGISTICS (PRIVATE) LIMITED
and
JEREMIAH MAKONI
and
TANAKA NHARINGO
and
SHERIFF OF THE HIGH COURT
and
COMMISIONER GENERAL OF THE ZIMBABWE REPUBLIC POLICE

HIGH COURT OF ZIMBABWE
MUNANGATI- MANONGWA J
HARARE; 23 February 2026 and 25 February 2026.

Urgent Court Application

T M Mutema, for the applicant
A Mugiya with A. T Nyathi and E.T Moyo for the 1st, 2nd and 3rd respondents

MUNANGATI- MANONGWA J: This is an application for contempt of court. The applicant has approached this court on an urgent basis, indicating that despite possessing a valid court order dated 1 December 2025 issued by DEMBURE J in Case Number HCHC 6060/25, which bars the respondents from the mining location SG 10113 and prohibits the extraction or processing of minerals, the first, second, and third respondents have failed to comply with the order. The order was formally served on the respondents by the applicant's legal practitioners. The applicant asserts that the respondents are actively moving a substantial amount of ore from the mining location on a daily basis, in violation of the court's directive.

The applicant contends that, despite receiving formal service of the order on 10 December 2025 and repeated demands, the respondents have failed, refused, and/or neglected to comply with its terms. Furthermore, the applicant claims that the respondents have established a large-scale excavation site, where they have deployed several pieces of heavy equipment, including hydraulic diggers, backhoes, and makeshift wash plants. Additionally, the applicant

asserts that the respondents have installed spiral concentrators and settling ponds at this site. According to the applicant, the respondents are moving an average of 30 truckloads of ore each day. The applicant asserts that he has made several attempts to persuade the first respondent to cease these activities, but these efforts have been unsuccessful.

In response, the first respondent filed a notice of opposition. Through its Director Tanaka Nharingo, the first respondent raised the following points *in limine*:

Urgency

The respondent contends that the matter lacks urgency, as the applicant had ample time to seek recourse for the alleged contempt of court but failed to do so. The respondent notes that on 10 December 2025, nine days after being granted an order in default against the first respondent, the applicant wrote to the first respondent demanding compliance with the court order. The respondent alleges that from 10 December 2025 until the date of this application, the applicant did not take any action, only to approach the court almost two months later citing urgency. The respondent questions why the applicant did not explain the delay in filing the application, given that the allegations regarding resource extraction had been communicated in the letter dated 10 December.

Dishonesty

The respondent claims that the applicant misled the court by presenting falsehoods and failing to disclose relevant facts. It asserts that it is inaccurate to state that the first respondent is mining on the applicant's claim; it is actually another company, Red Ant Mining (Private) Limited, that is conducting the mining activities. The respondent contends that the applicant entered into a joint venture agreement with Red Ant Mining (Private) Limited, which is conducting mining activities in accordance with that agreement.

Misjoinder

The respondent argues that the second and third respondents were never personally served with the application for contempt of court. A review of the draft order sought by the applicant indicates the potential for effective imprisonment in the event of non-compliance. The respondent asserts that personal service is required in contempt of court proceedings due to their impact on individual liberty. Furthermore, the first respondent argues that the second and third respondents are not directors of the first respondent. For a party to be held in contempt of court,

they must be involved in the proceedings leading to the order or judgment. Since the second and third respondents were not parties to the proceedings in case number HCH 6060/25, the respondent claims they have been misjoined.

In response to the first respondent's notice of opposition, the applicant filed an answering affidavit. The applicant denies the assertion that the urgency in this matter is self-created, as alleged. The applicant contends that the urgency is primarily based on the ongoing, continuous, and irreparable harm inflicted upon the applicant by the respondents' illegal mining operations. The applicant asserts that the respondents are engaged in the irreversible depletion of finite mineral resources, thereby necessitating urgent intervention.

Equally the applicant denies the allegation of dishonesty or any failure to demonstrate the requisite *uberrima fides* (utmost good faith). The applicant maintains that Red Ant Mining (Pvt) Ltd (hereinafter referred to as “Red Ant”) is a separate and distinct legal entity, and the dispute with it is unrelated to the current matter, which arises from the respondents' wilful and mala fide contempt of an existing court order. Furthermore, the applicant asserts that the existence of a legal dispute between the applicant and a third party is entirely irrelevant to the case at hand. He further contends that this dispute is being addressed through extra-judicial engagements and will be resolved at a later date before a different forum, therefore, the respondents should not attempt to evade their clear obligations.

The applicant asserts that there is no misjoinder concerning the second and third respondents. The applicant states that the second respondent is the most visible senior manager at the first respondent’s ground operations, while the third respondent, through his own admissions and actions, is responsible for the first respondent’s on-site operations. Applicant further asserts that both individuals are fully aware of the orders issued by this Court and understand their specific terms. The applicant further argues that the law in our jurisdiction does not exempt senior management from the obligations imposed on directors regarding compliance with court orders: as long as they are informed of such orders and maliciously refuse to comply, they may be classified as "impugned persons." Applicant further asserts that it is a well-settled principle in our law that while a corporation is a legal entity, it can only act through natural persons. Consequently, those responsible for management bear a personal duty to ensure compliance with court orders, hence, if such managers neglect to take necessary actions or actively participate in

defiance, they are personally liable for contempt. According to the applicant, the established test is, therefore, whether they are the "directing minds" in control of the contemptuous conduct, irrespective of their formal titles.

ISSUES FOR DETERMINATION

1. Whether or not the matter is urgent
2. Whether or not there is dishonesty on the part of the applicant which leads this court to deny audience to him.
3. Whether or not there is misjoinder

ANALYSIS

The applicant contends that he visited the site on 24 January 2026, which was the first occasion he became aware of the respondents' contempt of court activities. Conversely, the first respondent argues that the applicant should have acted immediately upon the granting of the order to substantiate the urgency claim. However, it is essential to recognize that the urgency arose on January 24, when the applicant first perceived the violation, thus marking the beginning of the urgency timeline. In *Kuvarega* v *Registrar General & Anor* 1988 (1) ZLR 188 (H) at 193 Chatikobo J said:-

> "What constitutes urgency is not only the imminent arrival of the day of reckoning; a matter is urgent; if at the time the need to act arises, the matter cannot wait. Urgency which stems from a deliberate or careless abstention from action until the dead-line draws near is not the type of urgency contemplated by the rules ……"

In this case, when the need to act arose on 24 January 2026, the applicant acted.

In *Dilwin Investments (Pvt) Ltd t/a Formscaff* v *Jopa Eng Co (Pvt) Ltd* HH-116-98 GILLESPIE J stated: -

> "A party who brings proceedings urgently gains a considerable advantage over persons whose disputes are being dealt with in the normal course of events. This preferential treatment is only extended where good cause can be shown for treating one litigant differently from most litigants. For instance, where, if it is not afforded, the eventual relief will be hallow because of the delay in obtaining it."

In the present matter, good cause is demonstrated by the applicant's potential loss of minerals, a finite resource. Thus, preferential treatment should be granted to the applicant based on the urgency of the loss. Henceforth, the point *in limine* is dismissed.

Regarding the issue of dishonesty, the first respondent alleges that the applicant is in a joint venture with Red Ant, asserting that the applicant's relationship with the company is pivotal to the case. However, the applicant maintains that Red Ant is a third party to these proceedings. It is fundamental that only parties relevant to the matter at hand are included in legal proceedings. The party to be joined must have a legal and direct interest in the matter, see *MBCA Bank Limited* v *The Reserve Bank of Zimbabwe & Anor HH482/15.* If a party is irrelevant, their presence has no bearing on the issues being addressed. Consequently, this point *in limine* is dismissed as it has no merit.

Vis the point *in limine* on misjoinder, it is imperative to refer to sections 54, 55, and 68 of the Companies and Other Business Entities Act [*Chapter 24:31*], which delineate the duties of care and loyalty, along with the conditions surrounding fraudulent, reckless, or grossly negligent conduct in business operations. This establishes that directors and management must ensure all necessary communications regarding the company's interests and refrain from acting maliciously.

Thus, the claim that the second and third respondents ought to have been joined and be part of the initial order lacks merit and is dismissed. As rightly pointed out by the applicant, a company is a legal entity which can only act through natural persons. Consequently, those responsible for the running of its affairs bear a personal duty to ensure compliance with court orders. If such personnel neglect to take necessary action to comply with a court order or actively participate in defiance of a court order, they are personally liable for contempt of court. The second and third respondents have revealed the roles they play particularly in the operations of the first respondent and such roles are senior active roles specifically in the actions complained of. Even if it were to be said there was need to cite the other respondents in the first instance it is important to note that misjoinder in legal proceedings does not render the proceedings fatally defective. The High Court Rules, 2021 also have a provision for non-joinder as follows in R32 (11):

> "(11) No cause or matter shall be defeated by reason of misjoinder or non-joinder of any party and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of people who are parties to the cause or matter."

Accordingly, the court makes the following order: -

1. The application is urgent.
2. All the points *in limine* are hereby dismissed.
3. The matter shall proceed to be heard on merits.

On Merits

It is the contention of the respondents in their opposition that an application for rescission of judgment is pending before the court hence this application is ill conceived. The first respondent further asserts that it has a special grant which precedes that of the applicant hence it has its own mining claim registered in 2024 under Number 9907 which is separate and distinct from that of the applicant which mining block is surrounded by that of the applicant. The respondent attached its special grant and co-ordinates. In essence the respondents deny being in contempt of court.

The first respondent persistently referred to the purported Joint venture between the applicant and Red Ant Mining as the entity conducting mining on the applicant's block. It even alleges that the applicant was paid $50 000 on 21 November 2025 for that company to conduct mining activities and that that company is first respondent's sister company. The respondents allege that Red Ant only transports the mined minerals to first respondent's block for processing as the first respondent has a chrome washing plant and other equipment to process raw chrome. It is the respondents' stance that the applicant is directing his litigation at the wrong party in a bid to frustrate first respondent.

The applicant in his answer to the opposition regards the filing of the application for rescission of judgment as of no effect as the judgment he has remains extant. He maintains that the first respondent was denied audience by this court in a judgment HH876/25 after it had applied for stay of execution, on the grounds that it is approaching court with dirty hands having failed to honour the very court order which applicant is relying on. The applicant has further referred the court to an injunction handed by the Mining Commissioner against the first respondent barring it from carrying out mining operations in the mining location

belonging to the applicant. It is the applicant's case that the first respondent has been in habitual contempt of court given the history of the case.

The Law

As GOLDIN J said in *Haddow* v *Haddow 1974* (1) RLR 5 (GD) at 8 A-C: -

> "The object of proceedings for contempt is to punish disobedience so as to enforce an order of court, and in particular an order ad factum praestandum, that is to say, orders to do or abstain from doing a particular fact. Failure to comply with such order may render the other party without a suitable or any remedy, and at the same time constitute disrespect for the court which granted the order."

The requirements to be satisfied before a party is found to be in contempt are as follows:

i. The existence of a valid court order;
ii. Service or knowledge of the order;
iii. Non-compliance with the order;
iv. Wilfulness and mala fides in the non-compliance

These, find confirmation in the words of GILLESPIE J in *Scheelite King Mining Co (Pvt) Ltd* v *Mahachi 1998 (1) ZLR 173 H at 177 H and 178 A* who had this to say:-

> "Before holding a person to have been in contempt of court, it is necessary to be satisfied both that the order was not complied with and that the no compliance was wilful on the party of the defaulting party." See also *Lindsay* v *Lindsay* 1995 (1) ZLR 296 S at 299 B.

Once the first three elements listed above are established, an inference of wilfulness and mala fides arises, and the evidentiary burden shifts to the respondent to rebut that inference.

Analysis

In *casu*, it is common cause that DEMBURE J issued an order barring the respondents from entering mining location SG 10113 and from extracting or processing minerals thereon. It is common cause that the order was served upon the respondents and that they had full knowledge of its contents. The first two requirements are therefore satisfied.

The applicant alleges that, notwithstanding service of the order, the respondents have continued mining operations at SG 10113. He avers that heavy machinery, including hydraulic diggers and backhoes, has been deployed at the site; that wash plants, spiral concentrators, and

settling ponds have been installed; and that approximately 30 truckloads of ore are removed daily. The applicant has provided pictures of the ongoing activities showing man at work and several machinery. The applicant maintains that the order remains extant and binding, and that the respondents are acting in deliberate defiance of the court's directive.

The respondents deny being in contempt. They contend that: an application for rescission of judgment is pending, the first respondent holds a special mining grant registered in 2024, separate and distinct from the applicant's claim, and that mining on the applicant's claim is conducted by Red Ant Mining (Pvt) Ltd pursuant to a joint venture with the applicant. The respondents contend that ore is merely transported to the first respondent's plant for processing.

Thus, the central issue which the court has to determine is whether the respondents have acted in breach of that order.

The order prohibits the respondents from entering SG 10113 and from extracting or processing minerals therefrom. The applicant has placed before the court allegations of extensive mining activity within that location. The respondents, on the other hand, assert that their operations are confined to a separate special grant and that any mining on the applicant's block is conducted by Red Ant Mining pursuant to a joint venture agreement.

It is pertinent to note that a pending rescission application does not suspend the operation of a court order unless a stay has been granted. A litigant is obliged to obey a court order, however erroneous he may consider it to be, until it is set aside by a competent court. It is not denied that an attempt to stay execution met with failure as the court found the first respondent to be approaching court with dirty hands and the judgment in HH876/25 bears testimony to that.

The attempt to attribute the extraction activities to Red Ant Mining does not, in itself, absolve the respondents. As contended by the applicant, it has a separate arrangement with Red Ant. There is no court order against that entity. These proceedings are against the respondents who are duty bound to comply with the existing court order by desisting from the wrongful conduct they are engaging in. The determinative question is factual: whether the mining and processing activities complained of are taking place within SG 10113 and whether the respondents are responsible for them. The order by DEMBURE J clearly provides a demarcation of the location protected by the order which order provides the co-ordinates that demarcate the applicant's block. The respondents assert that special grant location is surrounded by SG10113 of

the applicants. It therefore follows that their location is covered by the co-ordinates listed in the court order of DEMBURA J. Without the setting aside of that order, working on their purported site would inevitably be going against the order as the demarcations have been set out already. Given the evidence placed before the court, the applicant has established that:

a. The order remains extant and binding;
b. The respondents had knowledge of it;
c. Mining and processing activities are continuing at the disputed location despite knowing that such activities are prohibited.

I hasten to state that this court refused to entertain the application for stay of execution for the very reason that the first respondent had failed to respect its judgment. The very fact that the first respondent sought stay of execution of the order clearly shows its appreciation of the binding effect the order had on it and its mining activities. Equally, the Mining Commissioner's injunction remains in place. Despite demands to cease operations the respondents have ignored such. The respondents have not produced cogent evidence demonstrating that their operations are confined strictly to their separate grant or that they are uninvolved in the activities at SG 10113. Their reliance on a pending rescission application in HCH6251/25 and on the involvement of a related company does not rebut the inference of wilfulness. Whilst there is an affidavit from one Rufaro Muzondiwa of Red Ant that it is the entity bringing ore to respondents for processing the respondents would still be in contempt of court given that clause 1(c) of the order prohibits same as it reads:

> "(c) Extracting, processing, removing or otherwise dealing with any mineral resource already removed or originating from within the applicant's said mining location (Special Grant 10113); however, such resource may be located." (my emphasis)

By processing the mineral as admitted, the respondent is in contempt of the order as they will be dealing with the mineral removed or originating from the applicant's mining block even if it were to be accepted that the mineral is being brought to them by Red Ant. Suffice that, the pictorial evidence showing ongoing activities has not been challenged. The court can only conclude that the first respondent, its directors or managers are defiant and without another order of this court they will not comply with this court's order. In the circumstances, the inference of

deliberate non-compliance has not been rebutted. This court is satisfied that the applicant has established, on a balance of probabilities, that the respondents have wilfully breached the order of 1 December 2025.

Conclusion

The authority and dignity of this court rests upon compliance with its orders. Utter wilful disregard of court orders will not be entertained. The court will fiercely protect its integrity for its sake and for the sake of maintaining the rule of law. Anarchy has no place in this jurisdiction hence a party against whom an order has been granted cannot elect whether to obey it. Equally the court is fully convinced that the second and third respondents being the minds involved in the mining activities can not escape being caught in the tentacles of this application even though it is alleged that they are not directors. This stance has already been discussed earlier where the contention on misjoinder was raised.

The respondents are accordingly found to be in contempt of court.

In the result the following order is made:

1. The first, second, and third Respondents are found guilty of contempt of the order granted in Case No. HCH6060/25.
2. The 1st, second, and third Respondents shall each pay a fine of US$200 to the Registrar of the High Court within 48 hours of service of this order.
3. The Respondents shall purge their contempt by complying fully with the order in HCH6060/25 within 48 hours of service of this order.
4. Failing compliance, the second and third Respondents shall be committed to imprisonment for a period of six months or until such time as the first respondent has fully complied with the said order, whichever occurs first.
5. The fifth Respondent and all police officers under his command shall assist the fourth respondent in the enforcement of this order *vis* arrest and committal of second and third respondents should it become necessary.

6. The first, second and third Respondents shall pay costs of suit on an attorney-client scale, jointly and severally the one paying the other to be absolved.

MUNANGATI- MANONGWA J:……

Mutema Attorneys, applicant's legal practitioners
Mugiya Law Chambers, first, second and third respondents' legal practitioners